

बिड दस्तावेज़ / Bid Document

बिड विवरण / Bid Details	
बिड बंद होने की तारीख/समय / Bid End Date/Time	08-07-2026 16:00:00
बिड खुलने की तारीख/समय / Bid Opening Date/Time	08-07-2026 16:30:00
बिड पेशकश वैधता (बंद होने की तारीख से) / Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम / Ministry/State Name	Ministry Of Power
विभाग का नाम / Department Name	Na
संगठन का नाम / Organisation Name	Ntpc Limited
कार्यालय का नाम / Office Name	Ussc Cpg2 Raipur
शिकायत निवारण के संपर्क विवरण / Contact details of Grievance redressal	HOD Email id :sudiptodesarkar@ntpc.co.in Buyer Email id: rajnishkumar@ntpc.co.in
कुल मात्रा / Total Quantity	2
वस्तु श्रेणी / Item Category	Schedule1_PR_100274488_10_M7530990087_MINI IPS, RDSO/SPN/165/2023
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	MINI IPS,RDSO/SPN/165/2023
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Mini PC, Walk in Cooler, Intrusion Detection & Prevention Systems (IDS/IPS), Mini Dal Mill, Mini Rice Mill, Scoop Stretcher, Mini Stenter Dryer, PCR Mini Cooler, Computer Monitor (V2), Mini Jetting Machine
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	Portable Power Supply Unit
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़ / Document required from seller	Certificate (Requested in ATC), OEM Authorization Certificate, Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	ICICI
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00

ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).

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(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

NTPC LIMITED

NCPs Dadri NTPC Limited, PO: Vidyut Nagar, Distt: Gautam Budh Nagar Uttar Pradesh- 201008.

(Ntpc Limited)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई के लिए आरक्षित / Reserved for Make In India products

एमआईआई के लिए आरक्षित / Reserved for Make In India products

Yes

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Bid reserved for Make In India products: : Procurement under this bid is reserved for purchase from Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. However, eligible micro and small enterprises will be allowed to participate. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020 . In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

2. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs

having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

Schedule1_ PR_ 100274488_ 10_ M7530990087_ MINI IPS, RDSO/SPN/165/2023 (2 pieces)

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Kapil Dev Sharma	495555,GSTIN: 22AAACN0255D4Z5 NTPC Limited Sipat Super Thermal Power Project, Post Office : Ujwal Nagar, Distt. - Bilaspur (C.G.)	2	180

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates

(whichever is lower), subject to the maximum of quoted GST %.

2. **Generic**

Supplier shall ensure that the Invoice is raised in the name of Consignee with GSTIN of Consignee only.

3. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Only supply of Goods

4. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

SN	ATC (PR No. 100274488)
1	Nil Deviation Clause: The sellers who participate in current Tender are deemed to have fully accepted all Terms & Conditions, Technical Specifications, Data Sheets, Drawings, Quality Plans, Buyer Added Bid Specific Terms and Conditions given in Bidding Documents, read in conjunction with Amendment(s)/ Clarification(s)/ Addenda/ Errata (if any) issued by the Buyer prior to opening of Techno-Commercial Bids, and the same are supposed to have been taken into consideration while making their Techno-Commercial Bid & Price Bid. Further it is construed that no deviation has been taken by the seller in this regard. In case any documents/ details/ catalogues are found to have been submitted by the bidder along with its bid, which is in contravention to buyer's bidding documents inter-alia including technical specification, those will not be taken into cognizance. If any deviation is observed in the bid, the bidder shall have to withdraw such deviations; failing which bid shall be liable for rejection. Bidder/supplier shall have no right to contest the same in case supplied material is rejected due to deviation with respect to tender specification. Bidder shall submit the declaration that "It is again confirmed that our Bid is fully compliant to NTPC Specifications / Terms and conditions. Deviations (mentioned anywhere) in all the documents or Details / Catalogues submitted along with the bid with respect to tender documents stands withdrawn."
2	Bidders are requested to refer detailed technical specification of the item (s). In case of any contradiction between short text of item(s) and complete technical specification of the item(s), only complete technical specification of that item should be considered for the submission of offer and same shall be considered for evaluation purpose.

3	Bidder may quote as per "Technical Specification" and/ or technical specification sheet attached for each line item/ schedule. In case of any contradiction between Category/ BOQ Item description and "Technical Specification" of the item(s) attached in the tender, TECHNICAL SPECIFICATION OF THAT ITEM SHOULD BE CONSIDERED FOR THE SUBMISSION OF OFFER AND SAME SHALL BE CONSIDERED FOR EVALUATION PURPOSE AT OUR END. The details mentioned in the detailed Technical specification shall be considered final for the offer/ bid/ technical evaluation.
4	Bid Acceptance Criteria: Bidder names mentioned in enlisted as "Approved vendors"/"RDSO vendors for developmental orders", under the category "RDSO Item ID : 3100045, SMPS Based Integrated Power Supply (IPS) and Sub Item ID: 3100065001, SMPS Based Integrated Power Supply (IPS)" of RDSO Vendor Directory at website- "www.ireps.gov.in", valid as on date of bid submission deadline or their authorized dealer can only participate in this tender. Other bidders shall not be considered. Those bidders who are not meeting these criteria shall be rejected during technical evaluation. • In case Authorized Dealers of "Approved vendors"/ "RDSO vendors for developmental orders as above" have participated in this tender, such dealers shall have to submit their Bid-Specific Authorization Certificate, issued by source-standardized vendors, for evaluation of their bids. • Bidders other than the Above Standardized ones and their authorized dealers are requested not to participate in the tender. In case after opening of bid, it is observed that non-standardized bidders have participated, their bids shall not be considered for further processing, and shall be rejected during technical evaluation. • Manufacturer must stand guarantee for the quality of supplied material ordered on authorised dealer. In case of Award, authorised dealer must supply material from source-standardized manufacturer only, along with supporting documents. • GeM Contract shall be issued in the name of the vendor who submits offer in GeM.
5	Payment Term: 100% payment shall be released within 30 days after supply, installation and commissioning of MINI IPS along with accessories at NTPC site and acceptance by site.
6	Delivery Period: Delivery period would be 180 DAYS from the date of placement of Gem Contract. Delivery shall be complete only after successful commissioning and handing over of the IPS system to NTPC. LD as per GEM ATC would be calculated after completion of overall delivery period.

7	Warranty / Guarantee Clause: Warranty period shall be 12 months from the date of installation or 18 months from the date of supply, whichever is earlier. During the warranty period, any defect due to design, material or workmanship shall be rectified/replaced free of cost. Accordingly, the vendor has to submit Guarantee/ warranty certificate along with the Supply.
8	Interchangeability Clause: Not Applicable
9	Test / Calibration / Any Other Certificate Clause: Applicable as PDI clause and attached Technical Specs_Schedule-1.pdf
10	PDI Clause (Inspection and Tests): Applicable Inspection of the MINI IPS shall be carried out by M/s RITES/ M/s RDSO or M/s RDSO authorized third party agencies at the vendor's works. Vendor shall coordinate inspection schedule and Inspection charge shall be in the scope of vendor only. Vendor has to submit the inspection report along with supplied material for review and final acceptance at site.
11	Integrity Pact Clause: (Not Applicable)
12	Instructions for submission of Bank Guarantees (BGs): EMD Exemption shall be applicable as per GeM GTC. - Only BG (E-BG or Physical BG) shall be accepted for EMD purposes. Bank Guarantee (BG)- EMD/Bid Security is to be submitted in attached format(BGformats,pdf) only. BG received in any other format,including GeM format will be rejected. - All bids must be accompanied by Bid Security of the amount specified in the bid in the GeM portal. While submitting the bid for the subject tender, a scanned (pdf) copy of EMD instrument is to be uploaded on GeM Portal. - Bidder has to submit bank guarantee on appropriate value of stamp paper as per stamp duty act. - The bank guarantee should be only a bank from schedule commercial bank list attached in the BGformats.pdf. - The BG towards EMD shall remain valid for a period of forty-five (45) days beyond the original Bid validity period i.e. minimum 165 days from Bid opening date. - The Bank Guarantees against bid security primarily to be submitted in the form of e-BG through NeSL platform. In case the bidder is not able to submit e-BG, due to some practical difficulties or constraints, physical BGs are also accepted. Hard copy of original EMD BG shall reach USSC Raipur (CBD building), within 10 working days from Techno-Commercial BOD, as per GeM GTC. Please submit the Bank Guarantee (BG) towards EMD/Bid Security at below mentioned address: -

NTPC LTD, 9th floor, Tower-C, Commercial Complex, Plot No: C--03, Central Business District (CBD), Sector-21, Tuta, Atal Nagar, Naya Raipur, Chhattishgarh - 492018

Earnest Money Deposit should be sent in a sealed envelope, superscribed on the top as under:

"Tender Number _____

Tender Subject _____

Due Date of Bid Opening _____

From _____ (Name & address of the Bidder)".

ANY BID NOT ACCOMPANIED BY AN ACCEPTABLE BID SECURITY IN A SEPARATE SEALED ENVELOPE SHALL BE REJECTED BY THE EMPLOYER AS BEING NON-RESPONSIVE. IN CASE, THE BID SECURITY IS SUBMITTED AS E-BG, BIDDER TO SUBMIT THE COPY OF E-BG/PROOF OF E-PAYMENT OF BID SECURITY IN THE E-TENDERING PORTAL.

<u>e-BG details for new BGs</u>	
Beneficiary	NTPC Limited
Pan Number of the Beneficiary	AAACN0255D
Date of Incorporation of the Beneficiary	07.11.1975
Beneficiary Bank IFSC Code	SBIN0017313
Account no.	10813608669
Registered Address	NTPC Limited, NTPC Bhawan, Scope Complex, 7 Institutional Area, Lodhi Road, New Delhi -110003
Pin Code	110003
Active Mobile Number of the Beneficiary	9434011686

Active E Mail Id of the Beneficiary	rajnishkumar@ntpc.co.in
Contract reference number	Please mention GeM NIT No. /Contract/PO/Sale order no.

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Except for the BGs towards Bid Security, which are required to be submitted by the Bidders along with the Bids and the BGs issued by the banks outside India, all other BGs should be received from the Bank directly through post/ courier, by Unified Treasury, Dadri at below mentioned address: -

Unified Treasury (BG Group) Administrative Building,

NCPS Dadri NTPC Limited,

PO: Vidyut Nagar

Distt: Gautam Budh Nagar Uttar Pradesh- 201008.

A soft copy of the BG (other than BG towards Bid Security) is mandatorily required to be mailed to Unified Treasury Group at ubg@ntpc.co.in by the issuing Bank.

a) Confirmation of BGs (including Bid Security) through Structured Financial Messaging System (SFMS)/SWIFT: -

(Not applicable for e-BGs through NeSL platform)

While issuing the physical BGs, the Bidder's Bank shall also send electronic message through secure SFMS (in case of BGs issued from within India) or SWIFT (in case of BGs issued from outside India) to Employer's Beneficiary Bank whose details are provided herein below: -

(i) Bank Name: ICICI Bank Limited

(ii) Branch: CONNAUGHT PLACE BRANCH

(iii) Bank Address: 9A, PHELPS BUILDING, INNER CIRCLE, NEW DELHI- 110001

(iv) IFSC Code: ICIC0000007

BG issuing/amending bank must send the BG advice in the form of message format via SFMS (Structured Financial Messaging System) as provided by RBI. The format of the message for confirmation of the BG shall be as below: -

BG advising message: IFN 760COV/ IFN 767COV via SFMS

Field Number: Particulars (to be mentioned in Row 1)

	7037: NTPCBG (unique identifier) Only SFMS verified BG shall be considered, hence bidders are advised to ensure that the message is sent by their Bankers. SFMS issued by your bank may be attached along with the BG. b) The BG should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed, whichever is higher. (List of Stamp duty Charges (applicable at present) in different states attached in BGformats.pdf). c) The date, purpose of purchase and name of the purchaser should be indicated on the stamp paper. The stamp papers (other than e-stamp paper) should be duly signed by the stamp vendor. The date of sale of the non-judicial stamp paper, as indicated on the stamp paper should be of any date on or before the date of execution of the BG. The name of the Purchaser of stamp paper may either be the executing Bank or the party on whose behalf the BG is issued. In certain States, the Rules permit levy of stamp duty by the process of franking under signature of empowered officer. Such BG may also be accepted as duly stamped. - d) All Bank Guarantees should be enforceable for minimum ninety (90 days) after expiry of its validity.
13	Post Bid Clarification: e) Extension of all BGs should be on Stamp paper of same value as that of the original BG. Minimum extension of any BG should be three months along with 90 days of claim period from the revised date of expiry. Format attached in BGformats.pdf. In the event subsequent clarification(s)/query(ies) by NTPC are sought from Bidder and bidder fails to respond or responds with incorrect / inadequate or non-compliant information, the bid shall be liable to be rejected. During techno-commercial evaluation of the offer, reply given by bidder against the queries/clarifications asked and further accepted by NTPC shall be an integral part of the GeM Contract. Contract shall be executed in accordance with the same.
14	• All post award communication/ grievance will be addressed to consignee at email id: "storeincharge-sipat@ntpc.co.in". • In case of non-resolution of the issue, matter can be escalated along with previous correspondence(s) to email id: - vendor_grievance_cpg2@ntpc.co.in. • Any communication other than post award are not to be asked through above mail IDs. NTPC will not take cognizance of any such correspondence sent to above mail IDs and shall be outrightly ignored.
15	Conflict of Interest (A) A bidder shall not have conflict of interest with other bidders. Such conflict of interest can lead to anti-competitive practices to the detriment of Employer's interests. A bidder

may be considered to have a conflict of interest with one or more parties in this bidding process, if:

a) they directly or indirectly control, or are controlled by or are under common control of another entity; or

b) they have the same legal representative/agent for purposes of their bids; or

c) they have relationship with each other, directly or through common third party(ies), that puts them in a position to have access to information about or influence on the bid of another Bidder; or

d) Bidder and/or any of its allied entity(ies), which directly or indirectly control(s) or is(are) controlled by or is(are) under common control of another entity, has(ve) participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the tender; or

e) Bidder participates in more than one bid in this bidding process.

f) In cases of agents quoting on behalf of their principal manufacturers/service providers, one agent cannot represent two manufacturers/service providers or quote on their behalf in a particular tender enquiry. One manufacturer/service provider can also authorize only one agent. There can be only one bid from the following:

- i) The principal manufacturer/service provider directly or through one Indian agent on his behalf; and
- ii) Indian/foreign agent on behalf of only one principal.

For the purposes of this clause the term 'control' shall have the following meaning:

"Control" shall include the right to appoint majority of the directors or to control the management or policy decisions exercisable by a person or persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders' agreements or voting agreements or in any other manner.

Note: If two or more CPSEs/State PSEs participate in a tender, they will not be deemed to fall under the 'Conflict of Interest' provisions solely because they are under common control of Government of India/State Government.

(B) Bidders who participate in current tender are deemed to have accepted the following as compliance to Clause "Conflict of Interest":

(Compliance to "Conflict of Interest" provisions)

We confirm that we have read and understood the Clause as mentioned under Buyer Added Bid Specific ATC regarding "Conflict of Interest" and our bid is in compliance to this clause.

In case it is established that we have provided any false information in pursuance of the aforesaid Clause, while competing for this contract, then our bid shall be rejected and bid security shall be forfeited.

	We also understand that in case we become successful bidder, if it is established that we have not complied with terms of aforesaid Clause as mentioned under Buyer Addendum Bid Specific ATC, during execution of contract, this would be considered as fraudulent practice as mentioned in para 5.1 (j) of Policy for Debarment from Business Dealings and shall be dealt accordingly. The policy document can be accessed through the following link: https://ntpctender.ntpc.co.in/Heading/Policy_for_Debarment_from_Business_Dealings.pdf
16	No contract shall be awarded to a bidder against whom a Debarment Order has been issued as per Employer's Policy for Debarment from Business Dealings. Policy details can be referred at the URL given below: · https://ntpctender.ntpc.co.in/Heading/Fraud_Prevention_Policy.pdf · https://ntpctender.ntpc.co.in/Heading/Policy_for_Debarment_from_Business_Dealings.pdf
17	Risk Purchase In the event of Suppliers failure to supply the material of acceptable quality in scheduled delivery period, NTPC reserves the right to procure the materials from any other source at the Suppliers risk and cost and the difference in cost shall be borne by the Supplier. Further, NTPC shall retain the right of forfeiture of CPG and or any other action as deemed fit
18	GST conditions: Bidder should clearly declare HSN code & GST rate of the quoted item. Further change in HSN will not be allowed during the execution of contract (including at the time of invoicing) saving any instruction for change in HSN code from statutory authority and change in GST rate corresponding HSN code will be as per GeM tender document (GeM GTC).
19	Common IP Addresses: Bidders may please note that GeM is capturing and showing the IP addresses used by the Buyer and the Bidder(s) /Seller(s). The received bids having matching/common IP address with either Bidder(s)/Seller(s) or Buyer, shall be outrightly rejected & shall not be considered for further evaluation.

20	MSE benefit shall be given as per following conditions: 1. In case procurement of Goods/Services where requirement is not splittable preference to MSEs shall be given as follows subject to matching of L1 price: a) First preference to SC/ST & Women MSE i.e women SC/ST MSE b) Second preference to SC/ST MSE only c) Third preference to Women MSE only d) Other MSE 2. In case procurement of procurement of Goods/Services where requirement is splittable, out of 25% quantity/value, 4% shall be reserved for SC/ST and 3% shall be reserved for women and balance quantity out of 25% shall be divided in all MSEs within the margin of purchase preference subject to matching of L1 price. (L1 is Non-MSME & Quoted price of MSEs are L1+15%) a) In case of non-availability of SC/ST-MSE vendor within L1+15% margin, 7% will go to Women-MSE and balance 18% to other MSEs. b) In case of non-availability of Women-MSE vendor within L1+15% margin, then 7% to SC/ST MSE and balance 18% to other MSEs. c) In case of non-availability of both SC/ST MSEs & Women MSEs, then all 25% quantity goes to other MSEs. 3. In case of non-splittable tender, 02 or more bidders quoted same price, preference shall be given as follows: a) First preference to SC/ST & Women MSE b) Second preference to SC/ST MSE c) Third preference to Women MSE d) Others 4.If as per bid conditions, Performance Bank Guarantee (PBG) is applicable in the case. Then in that case, Performance Bank Guarantee (PBG) shall be 2.5% of contract value in place of original 5% of contract value for all MSE-SC-ST or MSE-Women vendors on whom order is placed.
21	MII Certificate: The bidder must submit OEM's declaration regarding the percentage of local content and the details of the locations where value addition is made, along with their bid, clearly mentioning the GeM bid number and the name of the quoted items. The declaration must be duly signed by the OEM of the quoted item. .

5. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/**Disclaimer**

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---